

To: TrailGenic LLC(mike.ye@live.com)
Subject: U.S. Trademark Application Serial No. 99380799 - TRAILGENIC
Sent: February 05, 2026 09:12:24 AM EST
Sent As: tmng.notices@uspto.gov

Attachments

United States Patent and Trademark Office (USPTO) Office Action (Official Letter) About Applicant's Trademark Application

U.S. Application Serial No. 99380799

Mark: TRAILGENIC

Correspondence Address:

TrailGenic LLC
7502 Morning Mist Drive
Corona CA 92880
United States

Applicant: TrailGenic LLC

Reference/Docket No. N/A

Correspondence Email Address: mike.ye@live.com

NONFINAL OFFICE ACTION

Response deadline. File a response to this nonfinal Office action within three months of the “Issue date” below to avoid [abandonment](#) of the application. Review the Office action and respond using one of the links to the appropriate electronic forms in the “How to respond” section below.

Request an extension. For a fee, applicant may [request one three-month extension](#) of the response deadline prior to filing a response. The request must be filed within three months of the “Issue date” below. If the extension request is granted, the USPTO must receive applicant's response to this letter within six months of the “Issue date” to avoid abandonment of the application.

Issue date: February 5, 2026

INTRODUCTION

The referenced application has been reviewed by the assigned trademark examining attorney. Applicant must respond timely and completely to the issue(s) below. 15 U.S.C. §1062(b); 37 C.F.R. §§2.62(a), 2.65(a); TMEP §§711, 718.03.

SEARCH RESULTS - NO CONFLICTING MARKS FOUND

The trademark examining attorney has searched the USPTO database of registered and pending marks and has found no conflicting marks that would bar registration under Trademark Act Section 2(d). 15 U.S.C. §1052(d); TMEP §704.02.

SUMMARY OF ISSUES:

- Amendment Required - Identification of Services
- Specimen Refusal - Class 041 Only
- U.S.-Licensed Counsel Suggested - Advisory

AMENDMENT REQUIRED - IDENTIFICATION OF SERVICES

Some of the wording in the identification of goods and/or services is indefinite and/or overly broad; that is, it is not clear what the nature of the goods and/or services is and/or the identification could include goods and/or services in more than one international class. The identification of goods and/or services must be specific, definite, clear, accurate, and concise. See 15 U.S.C. §§1051(a)(2), 1051(b)(2), 1053, 1126(d)-(e), 1141f; 37 C.F.R. §2.32(a)(6); TMEP §§1402.01, 1402.01(b)-(c).

Therefore, applicant must either (1) delete the unacceptable wording or (2) amend it to definite wording that specifies the nature of the goods and/or services in greater detail and that is within the scope of the original identification. See 37 C.F.R. §2.32(a)(6); TMEP §§1402.01, 1402.03. For assistance with drafting acceptable wording, use the USPTO's online searchable [Acceptable Identification of Goods and Services Manual](#) (ID Manual). See TMEP §1402.04. For guidance on searching the ID Manual, see "Searching the Trademark ID Manual" located under "Guides, Manuals, and Resources" in the Trademark portion of USPTO.gov, linked [here](#).

Applicant is in the best position to know their goods and/or services, and the ID Manual is a good resource for finding an appropriate amendment. Applicant may adopt the suggested identification and classification below, if accurate, which identifies the specific indefinite or overly broad wording and suggested clarification of that wording in **bold** font and which may indicate deletion of some or all of the indefinite or overly broad wording:

International Class 041: Electronic publishing services, namely, publication of text and graphic works of others on the Internet featuring hiking, outdoor recreation, wellness, fitness, and nutrition; **Providing a website featuring information in the field of fitness**

International Class 044: Providing a website featuring information in the field of health, wellness, ~~fitness~~, hiking-based metabolic health, and nutrition. ~~health~~

Applicant may amend the identification to clarify or limit the goods and/or services, but not to broaden or expand the goods and/or services beyond those in the original application or as acceptably amended. See 37 C.F.R. §2.71(a); TMEP §1402.06. Generally, any deleted goods and/or services may not later be reinserted. See TMEP §1402.07(e).

SPECIMEN REFUSAL - CLASS 041 ONLY

The stated refusal refers to International Class 041 only and does not bar registration in the other class.

Specimen does not show direct association between mark and services. Registration is refused because the specimen does not show a direct association between the mark and the services and fails to show the applied-for mark as actually used in commerce with the identified services in International Class(es) 041. Trademark Act Sections 1 and 45, 15 U.S.C. §§1051, 1127; 37 C.F.R. §§2.34(a)(1)(iv), 2.56(a), (b)(2); TMEP §§904, 904.07(a), 1301.04(f)(ii), (g)(i). An application based on Trademark Act Section 1(a) must include a specimen showing the applied-for mark as actually used in commerce for each international class of services identified in the application or amendment to allege use. 15 U.S.C. §1051(a)(1); 37 C.F.R. §§2.34(a)(1)(iv), 2.56(a); TMEP §§904, 904.07(a).

When determining whether a mark is used in connection with the services in the application, a key consideration is the perception of the user. *In re JobDiva, Inc.*, 843 F.3d 936, 942 (Fed. Cir. 2016) (citing *Lens.com, Inc. v. 1-800 Contacts, Inc.*, 686 F.3d 1376, 1381-82 (Fed. Cir. 2012)). A specimen must show the mark used in a way that would create in the minds of potential consumers a sufficient nexus or direct association between the mark and the services being offered. See 37 C.F.R. §2.56(b)(2); *In re Universal Oil Prods. Co.*, 476 F.2d 653, 655 (C.C.P.A. 1973); TMEP §1301.04(f)(ii).

For specimens showing the mark used in advertising the identified services, a direct association between the mark and services is established when the specimen (1) explicitly references the services and (2) shows the mark used to identify the services and their source. *In re Weiss*, Ser. No. 88621608, 2024 TTAB LEXIS 277, at *12 (2024); (quoting *In re WAY Media, LLC*, Ser. No. 86325739, 2016 TTAB LEXIS 201, at *4-5 (2016)); TMEP §1301.04(f)(ii). The services need not be specified word for word on the specimen; but “a sufficient reference to the services themselves or a general reference to the trade, industry, or field of use is required.” TMEP §1301.04(f)(ii); see *In re Pitney Bowes, Inc.*, Ser. No. 86502157, 2018 TTAB LEXIS 2, at *8-10 (2018); *In re Florists’ Transworld Delivery, Inc.*, Ser. No. 85164876, 2016 TTAB LEXIS 192, at *13-14 (2016); *In re Ralph Mantia Inc.*, Ser. No. 74657328, 2000 TTAB LEXIS 62, at *5 (2000).

Specimens showing the mark used in rendering the identified services need not explicitly refer to those services to establish the required direct association, but “there must be something which creates in the mind of the purchaser an association between the mark and the service activity.” *In re Weiss*, 2024 TTAB LEXIS 277, at *12-13 (quoting *In re Johnson Controls, Inc.*, Ser. No. 74195251, 1994 TTAB LEXIS 25, at *7 (1994)).

In the present case, the specimens do not show a direct association between the mark and services in Class 041. Specifically, applicant has identified their services in Class 041 as “Electronic publishing services, namely, publication of text and graphic works of others on the Internet featuring hiking, outdoor recreation, wellness, fitness, and nutrition”. This service encompasses the preparation of the works of others for online publication, not providing the work itself.

Applicant submitted one specimen showing the “Hike Summary & Reflections” page of applicant’s website and another specimen showing the “Science” page of applicant’s website. The “Hike Summary & Reflections” page specimen is unacceptable because it does not show the applied-for mark anywhere on the specimen, nor does it explicitly reference any “electronic publishing services, namely, publication of text and graphic works of others”. While this specimen might show that applicant provides their own online publications, it fails to show that applicant offers any electronic publishing services *for others*. Further, while the “Science” page specimen shows the applied-for mark, it similarly does not reference any of applicant’s identified services in Class 041.

Therefore, because the submitted specimens do not explicitly reference any of applicant's identified Class 041 services, the specimens fail to show use of the mark in commerce with that class, and are thus unacceptable.

Examples of specimens. Specimens for services must show a direct association between the mark and the services and include: (1) copies of advertising and marketing material, (2) a photograph of business signage or billboards, or (3) materials showing the mark in the sale, rendering, or advertising of the services. *See* 37 C.F.R. §2.56(b)(2), (c); TMEP §1301.04(a), (h)(iv)(C). Any webpage printout or screenshot submitted as a specimen must include the webpage's URL and the date it was accessed or printed on the specimen itself, within the electronic form that submits the specimen, or in a verified statement under 37 C.F.R. §2.20 or 28 U.S.C. §1746 in a later-filed response. *See* 37 C.F.R. §2.56(c); TMEP §§904.03(i), 1301.04(a).

Response options. Applicant may respond to this refusal by satisfying one of the following for each applicable international class:

- (1) Submit a different specimen (a verified [“substitute” specimen](#)) that (a) was in actual use in commerce at least as early as the filing date of the application or prior to the filing of an amendment to allege use and (b) shows the mark in actual use in commerce for the services identified in the application or amendment to allege use. A “verified substitute specimen” is a specimen that is accompanied by the following statement made in a signed affidavit or supported by a declaration under 37 C.F.R. §2.20: “The substitute (or new, or originally submitted, if appropriate) specimen(s) was/were in use in commerce at least as early as the filing date of the application or prior to the filing of the amendment to allege use.” The substitute specimen cannot be accepted without this statement.
- (2) Amend the filing basis to [intent to use under Section 1\(b\)](#) (which includes withdrawing an amendment to allege use, if one was filed), as no specimen is required before publication. This option will later necessitate additional fee(s) and filing requirements, including a specimen.

For an overview of the response options referenced above and instructions on how to satisfy these options using the electronic response form, see the [Specimen webpage](#).

U.S.-LICENSED COUNSEL SUGGESTED - ADVISORY

Because of the legal technicalities and strict deadlines of the trademark application process, applicant is encouraged to hire a private attorney who specializes in trademark matters to assist in this process. The assigned trademark examining attorney can provide only limited assistance explaining the content of an Office action and the application process. USPTO staff cannot provide legal advice or statements about an applicant's legal rights. TMEP §§705.02, 709.06. *See* [Hiring a U.S.-licensed trademark attorney](#) for more information.

RESPONSE GUIDELINES

For this application to proceed, applicant must explicitly address each refusal and/or requirement in this Office action. For a refusal, applicant may provide written arguments and evidence against the refusal, and may have other response options if specified above. For a requirement, applicant should set forth the changes or statements. Please see the [Responding to Office Actions](#) webpage for more information

and tips on responding.

Please email the assigned trademark examining attorney with questions about this Office action. Although an examining attorney cannot provide legal advice, the examining attorney can provide additional explanation about the refusal(s) and/or requirement(s) in this Office action. See TMEP §§705.02, 709.06.

The USPTO does not accept emails as responses to Office actions; however, emails can be used for informal communications and are included in the application record. See 37 C.F.R. §§2.62(c), 2.191; TMEP §§304.01-.02, 709.04-.05.

How to respond. File a [response form to this nonfinal Office action](#) or file a [request form for an extension of time to file a response](#).

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RESPONSE GUIDANCE

- **Missing the deadline for responding to this letter will cause the application to [abandon](#).** A response or extension request must be received by the USPTO before 11:59 p.m. **Eastern Time** of the last day of the response deadline. Trademark Electronic Application System (TEAS) [system availability](#) could affect an applicant's ability to timely respond. For help resolving technical issues with TEAS, email TEAS@uspto.gov.
- **[Responses signed by an unauthorized party](#) are not accepted and can cause the application to [abandon](#).** If applicant does not have an attorney, the response must be signed by the individual applicant, all joint applicants, or someone with [legal authority to bind a juristic applicant](#). If applicant has an attorney, the response must be signed by the attorney.
- If needed, **find [contact information for the supervisor](#)** of the office or unit listed in the signature block.